ANNEX C

DATA PRIVACY AGREEMENT

This Data Privacy Agreement is made between TESDA and Competency Assessment Candidate/Certified Individual for the purpose of adhering to the Data Privacy Act of 2012's protection of data subjects' rights.

Whereas, TESDA as a government agency which collects, processed and store personal information, including those form clients in various projects and programs, adheres to Republic Act No. 10173 known as Data Privacy Act of 2012;

Whereas, the TESDA Training Management Information System (T2MIS) as a resource network and platform for TESDA's assessment and certification and related activities contain and manages various personal information and all other data;

Whereas, Assessment Candidate and Certified Individual are limited to their access rights and that in no way compromising the data subject's privacy rights by unauthorized collection, use, downloading, disclosing and any other acts that will result to violation of confidentiality, availability and integrity of the personal information and data and the T2MIS as a whole;

Whereas, TESDA and Assessment Candidate/Certified Individual shall be bound to the general and specific terms and condition of this agreement.

E-Certificate and T2MIS Access

1. The password need to remain secret and secure and strictly no sharing with the exception for those who need to surrender his/her password if requested to do so in the presence of his/her supervisor, as part of a work/assignment turnover;

2. That if the User is a TESDA employee, Job Order, with Contract of Services or similar engagements, TESDA reserves the right to hold the employee liable for damages caused by the employee's failure to protect the confidentiality of his/her password in accordance with terms of this agreement;

3. There shall be no unauthorized file sharing and networking of whatever type;

4. There shall be no reconfiguration of any TESDA-approved VPN technology by any users, other than the system administrators performing official duties to ensure that mandated security requirements are not inadvertently disabled or modified;

5. T2MIS and related network resources shall not be utilized in support of unlawful activities defined by law and any other acts that shall result to damage of the system;

6. T2MIS and related network resources shall not be utilized for activities that violate Data Privacy Law, Cyber Security Law and any other applicable laws. Corresponding sanctions and penalties shall be imposed;

7. In addition to the preceding paragraph, any other acts that violates the code of conduct policies established by the Human Resource Management Division (HRMD) or the Agency/Company where the user is employed or under contract.

TESDA Waiver

1. Users recognize that systems and networks are imperfect and waive any claim for lost work or time that may arise from the use of the T2MIS. TESDA shall not be liable for degradation or loss of personal data, software, or hardware as a result of their use of the IT System.

2. Users recognize that TESDA provides access to the T2MIS only as a privilege and not a right; that they have no right to use it for any purpose other than those directly connected with the work of TESDA; and that TESDA may take whatever measures it deems necessary to enforce this. Users therefore waive any action they may have against TESDA under any law or administrative rule or regulation for any act the TESDA undertakes under this agreement.

Non-Disclosure

1. T2MIS Users acknowledge and adhere to the non-disclosure of the personal information without the voluntary consent of the data subject/s and any or all other data from T2MIS without the authority of an Authorized Officer

I hereby read, understood and acknowledge the details, degree and the requirements of the above terms and conditions, by my clicking of YES in this button.

_____

SIGNATURE OVER PRINTED NAME

_____

DATE